

Irrevocable Master Fee Protection Agreement

IMFPA | RSK-IMFPA-03

This Agreement is made on the date stated below by and between the Principal, the Beneficiaries named in Schedule A and, for acknowledgement, the Paymaster (each a "Party"), in connection with the Transaction described below.

DATE OF AGREEMENT

PLACE

REFERENCE NO.

UNDERLYING CONTRACT / SPA REF.

PRINCIPAL

COMPANY NAME

REGISTRATION NO.

COUNTRY

REGISTERED ADDRESS

REPRESENTED BY

POSITION

Capacity of the Principal:

☐ Seller

☐ Buyer

TRANSACTION

COMMODITY / PRODUCT

QUANTITY PER SHIPMENT

TOTAL QUANTITY

DELIVERY PERIOD

DELIVERY TERMS (INCOTERMS)

01 Purpose

- 1.1 The Beneficiaries have introduced, negotiated or otherwise contributed to the Transaction. The Principal wishes to secure, irrevocably, the fees due to them, and the Beneficiaries rely on this Agreement in continuing to support the Transaction.
- 1.2 "Transaction" means the sale and purchase described above, together with every contract, shipment, call-off, renewal, extension, amendment or replacement between the Principal, the counterparty and their respective affiliates, successors or nominees, however structured.

02 Fees

- 2.1 The Principal shall pay each Beneficiary the fee stated in Schedule A on every shipment, delivery or payment made under the Transaction, for the whole life of the Transaction and any renewal or extension.

SCHEDULE A: BENEFICIARIES AND FEES

BENEFICIARY (COMPANY)	ROLE	FEE (% OR USD PER UNIT)	COUNTRY

- 2.2 Fees are due in full, free of set-off, deduction or withholding, in the currency of the Transaction unless agreed otherwise, and are earned upon receipt of payment by the Principal for each shipment.

03 Payment Mechanism and Paymaster

- 3.1** Fees shall be paid through the Paymaster named below, which shall disburse each Beneficiary's fee directly from the proceeds of each payment within **three (3) banking days** of receipt of funds, in accordance with the payment instructions annexed to this Agreement.

PAYMASTER (BANK /
LAW FIRM)

ADDRESS

COUNTRY

ACCOUNT / REFERENCE

SWIFT / BIC

- 3.2** The Principal instructs the Paymaster irrevocably and shall not amend, delay or cancel these instructions without the written consent of all Beneficiaries. If no Paymaster acts, the Principal shall pay the Beneficiaries directly within the same period.

04 Irrevocability and Protection

- 4.1** This Agreement is irrevocable and cannot be terminated, varied or waived except in writing signed by all Parties. It binds the Principal, its affiliates, successors, assigns, nominees and heirs.
- 4.2** The Beneficiaries' rights extend to all business between the Principal, the counterparty and their affiliates that derives from the Transaction, including repeat, follow-on and replacement business and business concluded through third parties or new entities.
- 4.3** Rights under this Agreement survive expiry, termination, assignment or non-performance of the underlying contract, save where the Beneficiary's own wilful default caused it.

05 Confidentiality and Non-Circumvention

- 5.1** The Parties shall keep this Agreement and all information relating to the Transaction confidential, and shall not circumvent any Beneficiary. Any separate Non-Circumvention and Non-Disclosure Agreement between the Parties applies in addition.

06 Late Payment and Remedies

- 6.1** Overdue amounts bear interest at ____ % **per annum** from the due date until payment. The defaulting Party bears reasonable legal and collection costs.
- 6.2** Each Beneficiary may seek injunctive relief and specific performance in addition to any other remedy.

07 Term

- 7.1** This Agreement takes effect on signature and remains in force for the duration of the Transaction and any renewal or extension, and in any event for not less than **five (5) years**.

08 Governing Law and Dispute Resolution

- 8.1** This Agreement is governed by the law stated below. Disputes shall first be discussed in good faith for thirty (30) days and, failing agreement, finally settled as stated below.

GOVERNING LAW

ARBITRATION RULES /
COMPETENT COURTS

SEAT / PLACE OF
JURISDICTION

LANGUAGE OF
PROCEEDINGS

09 General Provisions

- 9.1** This Agreement is the entire agreement on its subject matter. If any provision is invalid, the remainder stays in force.
- 9.2** It may be signed in counterparts and by electronic signature or scanned copy, each deemed an original.

10 Signatures

Executed by the duly authorised representatives:

PRINCIPAL: NAME		BENEFICIARY: NAME	
TITLE		TITLE	
DATE		DATE	

PRINCIPAL: SIGNATURE AND STAMP	BENEFICIARY: SIGNATURE AND STAMP
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Acknowledged by the Paymaster:

PAYMASTER: NAME, DATE, SIGNATURE AND STAMP

